

Amendment. After the Bill is filed, several circumstances may render it advisable to alter or amend it. Some fact may come to the Plaintiff's knowledge, which it may be found necessary to put in issue before the Defendant has answered the Bill; and at that early period the amendment may be made as of course. Or, after the Bill is answered, it may be found advisable to make an amendment with a view to meeting the case set up in defence; and frequently several amendments may become necessary. The terms on which these can be made are provided for by the following Order—

1850.

XII.

AMENDMENT OF BILL.

Amendment of Bill on motion or petition.

An Order for leave to amend the Bill may be obtained at any time before answer, upon motion or petition in the Cause without notice.

Clerical error.

An Order for leave to amend the Bill, only for the purpose of rectifying a clerical error in names, dates, or sums, may be obtained at any time upon motion or petition in the Cause without notice.

One Order of course.

One Order of course for leave to amend the Bill, as the plaintiff may be advised, may be obtained by the plaintiff at any time before filing the replication, and within four weeks after the answer, or the last of several answers shall be filed; but no further Order of course for leave to amend the Bill is to be granted, after an answer has been filed, except in the case provided for by the second section of this Order.

Without prejudice to an injunction.

The plaintiff, having obtained an Order for leave to amend his Bill, has, in all cases in which such Order is not made without prejudice to an injunction, fourteen days after the date of the Order within which he may amend such Bill.

If such Bill be not amended within such fourteen days, the Order for leave to amend becomes void, and the Cause as to dismissal stands in the same situation as if such Order had not been made.

Amend within seven days.

And the plaintiff, having obtained an Order for leave to amend his Bill, without prejudice to an injunction, must amend such Bill within seven days from the date of the Order.

If such Bill be not amended within such seven days, the Order for leave to amend becomes void, and the cause as to dismissal stands in the same situation as if such Order had not been made.

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